

24STCV31952 24STCV31952

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-13

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Case Number: 24STCV31952 Hearing Date: July 13, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:52 PM on July 10, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 10, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Default on business line of credit

and credit card account and guaranty thereof.

Plaintiff

Wells Fargo Bank National Association moves for summary adjudication as to Defendant

Phillip M Ahn, aka Phillip Moonok Ahn.

TENTATIVE RULING

Plaintiff

Wells Fargo Bank National Association's moves for summary adjudication as to Defendant Phillip M Ahn, aka Phillip Moonok Ahn is GRANTED as to the fourth and eighth causes of action, effectively resulting in summary judgment against Defendant Ahn.

ANALYSIS

Motion For Summary
Adjudication

Discussion

Plaintiff

Wells Fargo Bank National Association moves for summary adjudication as to Defendant Phillip M Ahn, aka Phillip Moonok Ahn as to the Complaint as follows:

ISSUE NO. 1: PHILLIP AHN PERSONALLY GUARANTEED
SHAPHIL, INC.'S PERFORMANCE ON ACCOUNT 7023 (FOURTH CAUSE OF ACTION)

and

ISSUE NO. 2: PHILLIP AHN
PERSONALLY GUARANTEED SHAPHIL, INC.'S

PERFORMANCE ON ACCOUNT 7086
(EIGHTH CAUSE OF ACTION)

"A lender is entitled to judgment on a breach of guaranty claim based upon undisputed evidence that (1) there is a valid guaranty, (2) the borrower has defaulted, and (3) the guarantor failed to perform under the guaranty. (Torrey Pines Bank v. Superior Court (1989) 216 Cal.App.3d 813, 819 [265 Cal. Rptr. 217].)" (Gray1 CPB, LLC v. Kolokotronis (2011) 202 Cal.App.4th 480, 486.) "A surety who has assumed liability for payment or performance is liable to the creditor immediately upon the default of the principal, and without demand or notice." (Civ. Code, § 2807.)

"[W]hen discovery, properly used, makes it 'perfectly plain that there is no substantial issue to be tried' [citation], section 437c, Code of Civil Procedure, is available for prompt disposition of the case." (Buffalo Arms, Inc. v. Remler Co. (1960) 179 Cal.App.2d 700, 703 [4 Cal.Rptr. 103].) Furthermore, it is clear that the nonmoving party's admissions may be used to establish that no material factual issues remain to be resolved by trial. (See Newport v. City of Los Angeles (1960) 184 Cal.App.2d 229, 236 [7 Cal.Rptr. 497].)

(Cory v. Golden State Bank
(1979) 95 Cal.App.3d 360, 366.)

Defendant's undisputed material facts as to the fourth and eighth causes of action and attorney's fees is set forth in the separate statement as follows:

1. On or about January 10, 2022, Shaphil, Inc. submitted to Wells Fargo the Small Business Lending Credit Application Agreement & Personal Guarantee (the "Application" attached to the Declaration of Amy Greenwell as Exhibit "1".

Declaration of Amy Greenwell ("Greenwell Decl.") at ¶6 on page 3, lines 2-5; see Exhibit "1" attached thereto.

Admitted in Phillip Ahn's responses to Requests for Admission No. 1. (See

Exhibit B to Ramirez-Browning Decl.)

2. The Application was signed by defendant Phillip Ahn.

Greenwell Decl. at ¶8 on page 3, lines 9-15; see Exhibit "1" attached thereto, page 2.

Admitted

in Phillip Ahn's responses to Requests for Admission No. 2. (See

Exhibit B

to Ramirez-Browning Decl.)

3. In

reliance on the promises, terms and conditions contained in the Application, Wells Fargo established a business line of credit account for Shaphil, Inc., referred to herein as "Account 7023".

Greenwell

Decl. at ¶19 on page 3, lines 16-18.

Admitted

in Phillip Ahn's responses to Requests for Admission No. 1. (See

Exhibit B

to Ramirez-Browning Decl.)

4.

Shaphil, Inc. promised to pay Wells Fargo all monies advanced by Wells Fargo on Account 7023, as well as a minimum amount each month.

See

Greenwell Decl. at ¶11 on page 3, lines 21-23, and Exhibit "2" attached thereto on page 8.

Admitted

in Phillip Ahn's responses to Requests for Admission No. 1. (See Exhibit B to Ramirez-Browning Decl.)

5. Wells Fargo advanced monies in accordance with the terms of Account 7023.

Greenwell

Decl. at ¶13 on page 3, line 27 through page 4, line 2.

Admitted

in Phillip Ahn's responses to Requests for Admission No. 7. (See

Exhibit B

to Ramirez-Browning Decl.)

6. Wells

Fargo advanced monies in accordance with the terms of Account 7023, and otherwise performed all of its obligations thereunder.

Greenwell

Decl ¶14, page 4, lines 6-7.

7.

Shaphil, Inc. failed to timely pay amounts due on Account 7023.

Greenwell

Decl. at ¶15 on page 4, lines 8-9.

8. On May

27, 2024, due to the failure to timely pay amounts due, Wells Fargo terminated, charged off and closed Account 7023.

Greenwell

Decl. at ¶16 on page 4, lines 10-14; see also page 1 of Exhibit "3" attached hereto.

9. As of

May 27, 2024, the amount due on Account 7023 was \$53,046.71.

Greenwell

Decl. at ¶16 on page 4, lines 13-14; see also page 1 of Exhibit "3" attached hereto.

10. The

last payment Wells Fargo received on Account 7023 was September 30, 2024.

Greenwell

Decl. at ¶15 on page 4, line 9.

11. As of

the date hereof, the amount due on Account 7023 is \$52,446.71.

Greenwell

Decl. at ¶17 on page 4, lines 16-17.

12. Wells Fargo has made demand on Phillip Ahn
for payment of the \$52,446.71 due on Account 7023.

Greenwell

Decl. at ¶18 on page 4, lines 18-19. Ramirez-Browning Decl., page 2, ¶2, and
Exhibit "A" attached thereto.

13.

Phillip Ahn has failed to pay the \$52,446.71 due on Account 7023.

Greenwell

Decl. at ¶18 on page 4, lines 18-19.

14. On or

about December 30, 2018, Shaphil, Inc. submitted to Wells Fargo the Business
Account Application (the "Application") attached to the Greenwell Declaration
as Exhibit "4".

Greenwell

Decl. at ¶19 on page 4, lines 21-23.

Admitted

in Phillip Ahn's responses to Requests for Admission No. 10. (See

Exhibit B

to Ramirez-Browning Decl., page 2, line 4)

15. The

Application was signed by defendant Phillip Ahn.

Greenwell

Decl. at ¶21 on page 5, line 27 and page 6, lines 1-6.

Admitted

in Phillip Ahn's responses to Requests for Admission No. 11. (See

Exhibit B

to Ramirez-Browning Decl.)

16. In

reliance on the promises, terms and conditions contained in the Application, Wells Fargo established a business credit card account for Shaphil, Inc., referred to herein as "Account 7086"

Greenwell

Decl. at ¶22 on page 5, lines 7-9.

Admitted

in Phillip Ahn's responses to Requests for Admission No. 14. (See

Exhibit B

to Ramirez-Browning Decl.)

17.

Shaphil, Inc. promised to pay Wells Fargo all monies advanced by Wells Fargo on Account 7086, as well as a minimum amount each month.

See

Greenwell Decl. at ¶24 on page 5, lines 12-14, and Exhibit "4" attached thereto on page 11.

Admitted

in Phillip Ahn's responses to Requests for Admission No. 1. (See Exhibit B to Ramirez-Browning Decl., page 2 line 21)

18. Wells

Fargo advanced monies in accordance with the terms of Account 7086, and otherwise performed all of its obligations thereunder.

Greenwell

Decl ¶27, page 5, lines 24-25.

19. Wells

Fargo advanced monies in accordance with the terms of Account 7086.

Greenwell

Decl. at ¶25 and ¶26 on page 5 lines 15-20.

Admitted
in Phillip Ahn's responses to Requests for Admission No. 14. (See

Exhibit B
to Ramirez-Browning Decl.)

20.
Shaphil, Inc. failed to timely pay amounts due on Account 7086.

Greenwell
Decl. at ¶28 on page 5, lines 26-27.

21. On
August 18, 2024, due to the failure to timely pay amounts due, Wells Fargo terminated,
charged off and closed Account 7086.

Greenwell
Decl. at ¶29 on page 6, lines 1-3.

22. As of
August 18, 2024, the amount due on Account 7086 was \$13,858.05.

Greenwell
Decl. at ¶29 on page 6, lines 4-5.

23. The
last payment Wells Fargo received on Account 7086 was September 30, 2024.

Greenwell
Decl. at ¶28 on page 5, line 27.

24. As of
the date hereof, the amount due on Account 7086 is \$13,458.05.

Greenwell
Decl. at ¶30 on page 6, lines 6-8.

25. Wells
Fargo has made demand on Phillip Ahn for payment of the \$13,458.05 due on

Account 7086.

Greenwell

Decl. at ¶31 on page 6, lines 9-10. Ramirez-Browning Decl., page 1, ¶2, and Exhibit "A" attached thereto.

26.

Phillip Ahn has failed to pay the \$13,458.05 due on Account 7086.

Greenwell

Decl. at ¶31 on page 6, lines 9-10.

ATTORNEY

FEES

27. Wells

Fargo has employed counsel, licensed, and practicing in the State of California, for the purpose of instituting and prosecuting this action.

Ramirez-Browning

Decl. at ¶1 on page 1, lines 19-23.

28. Wells

Fargo is entitled to attorneys' fees of \$2,208.10 and costs of \$732.90.

Ramirez-Browning

Decl. at ¶6 and ¶7 on page 2, lines 17-25.

Although

not addressed by Plaintiff, the Guaranties attached to the Complaint include attorney's fees clauses.

The

foregoing evidence is sufficient to demonstrate that Plaintiff is entitled to judgment as to the fourth cause of action for breach of guaranty as to Account 7023 and as to the eighth cause of action for breach of guaranty as to Account 7086, along with attorney's fees incurred in bringing this action, as against Defendant Phillip Ahn. The burden shifts to Defendant to demonstrate that a triable issue of material fact exists.

In

failing to file a timely opposition, Defendant has failed to meet his burden of demonstrating that a triable issue of material fact exists.

As

such, Plaintiff is entitled to summary judgment as against Defendant Phillip Ahn (as the fourth and eighth causes of action are the only ones asserted against him).

Plaintiff

Wells Fargo Bank National Association's moves for summary adjudication as to Defendant Phillip M Ahn, aka Phillip Moonok Ahn is GRANTED as to the fourth and eighth causes of action, effectively resulting in summary judgment against Defendant Ahn.